RYAN NCUBE

Versus

THE STATE

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 16 AND 20 OCTOBER 2025

Bail Application

K Ngwenya, for the applicant
Ms C Mujokoro, for the respondent

NDUNA J*:* - This is an application for bail pending trial. The applicant, a 39-year-old male has approached this court in an application to be admitted to bail. He was arrested on 11 January 2025 and has remained in custody to date, a period of 10 months. The applicant is facing one charge of Murder, and Robbery with aggravating circumstances. Upon his arrest on 11 January 2025, the applicant appeared in the Magistrates Court as usual and was remanded in custody from where he requested to be released on bail. The applicant has since launched this application in this court to be released on bail.

The applicant brought this application to be released The Applicant deposits the sum of US$250.00 with the Clerk of Criminal Court at Bulawayo Magistrates Court in among other conditions. The State opposed the applicant's application in the main, contending that there are no changed circumstances to warrant the granting of bail pending trial.

Whilst the state is responding to an application for bail on changed circumstances, the accused or applicant has initiated his application as a fresh application. In other words, the applicant is saying that this is his initial application for bail. What is clear is that the accused is being arraigned as Justin Mpofu. He elects to be called Ryan Ncube.

The question to be asked here is that did the accused once applied for bail as Justin Mpofu? If the answer is yes, does his coming back now as Ryan Ncube, his first or second bail application?

What happened is that the accused appeared before this court under CRB number HCBCR 285/25 on 17 February 2025 and I refused bail. I gave a bail ruling finding that the accused was not suitable to be granted bail in the circumstances. Clearly the question here is not whether the accused is Justin Mpofu or Ryan Ncube. The question is whether the accused appeared before the court seeking bail previously. If the answer to this question is yes; then his application is premised on the wrong provision of the law.

This is so because this application is proceeded with in terms of *section 117(a) of the Criminal Procedure and Evidence Act [Chapter 9:07]*. The applicant has clearly stated that this is an initial application. The applicant has now zeroed on the court to re-decide the same application which he brought before the court on 17 February 2025. The only difference is the names which he is appearing on; being Justin Mpofu and Ryan Ncube.

In *S* v *Vermaas 1996 (1) SACR 528 (T) at 531E-F*, set out the applicable approach in the following terms:

> *"Obviously an Accused cannot be allowed to repeat the same application for bail based on the same facts week after week. It would be an abuse of the proceedings. Should there be nothing new to be said the application should not be repeated and the Court will not entertain it. But it is a non-sequiture to argue on that basis that where there is some new matter the whole application is not open for reconsideration but only the new facts. I frankly cannot see how this can be done. Once the application is entertained the Court should consider all facts before it, new and old, and on the totality come to a conclusion. It follows that I will not myopically concentrate on the new facts, alleged."*

It therefore follows that any person can come to court for bail applications as many times as he wishes provided that there a new facts to his case. "New facts" can be seen as facts that came to light after the refusal of bail, and they also include circumstances which have changed since a bail application was refused. New facts cannot be facts previously presented or those facts previously presented merely just reshuffled, but they have to be facts sufficiently different in character from the facts previously presented at the unsuccessful bail application.

In *S v Peterson 2008 (2) SACR 355 (C) at par [57]* it was held that:

> *"When, as in the present case, the accused relies on new facts which have come to the fore since the first, or previous, bail application, the court must be satisfied, firstly, that such facts are indeed new and, secondly, that they are relevant for purposes of the new bail application.*
>
> *They must not constitute simply a reshuffling of old evidence or an embroidering upon it. See S v De Villiers 1996 (2) SACR 122 (T) at 126e-f. The purpose of adducing new facts is not to address problems encountered in the previous application or to fill gaps in the previously presented evidence".*

Therefore, having styled his application as a initial application for is therefore wrong. We cannot be see to be dealing with the same facts over and over again. Whatever names the accused would possibly appear before the court, one underlying factor is he must disclose that it would not be an initial application. Therefore having found that he is calling the court to decide the same grounds and question again it is not permissible that he does so. He must only come back clearly on new facts.

Accordingly, the repeat application must fail and is accordingly dismissed.

J Mabhikwa and Partners, applicant's legal practitioners
The National Prosecuting Authority, respondent's legal practitioners